

Tentative Rulings for August 27, 2026, Probate Calendar

Judge James T. Chou
Department C

**APPEARANCES MAY BE MADE
IN PERSON
OR ON ZOOM.**

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1. Click on the “Virtual Courtrooms” icon and then on “Zoom Civil / Family / Probate Court Calendar Appearance Information”
2. Scroll down to Department C – Probate for the connection information.

Any interested party who wishes to appear for oral argument on the tentative ruling **must do the following no later than 4:00 PM** one Court day prior to the scheduled hearing date (MCR 6.2.D):

1. Notify all other parties entitled to notice of the underlying petition, including the attorneys for represented parties; and
2. Advise the clerk’s office by leaving a message at **(415) 444-7046, option 5.**

There is no need to inform the Court of your intent to appear if the tentative ruling requires an appearance.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at **(415) 444-7260**. Confidential cases include applications for Special Immigrant Juvenile Status.

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Judge James T. Chou

Department C

9:00 Calendar

PR0000081 ESTATE OF ANNE WOODWARD ROBERTS aka ANNE W. ALLEN

Final Report of Successor Administrator on Waiver of Accounting (§ 10500 and § 10450 – IAEA); Statutory Administrator's Fees (§ 10800) and Petition for Final Distribution of Estate, filed by Leslie Roberts on 8/4/26.

Ruling. This matter is **continued to October 15, 2026, at 9:00 a.m.** Petitioner is **ordered to:**

1. **File** an Amendment to Petition that:
 - a. Addresses the Creditor's Claim filed by the Franchise Tax Board on 10/23/24.
 - b. Revises the amount on hand for final distribution if necessary.
 - c. Provides legal authority for distributing Kenneth Penn's share of the Estate to the Trustee of his Living Trust rather than to the personal representative of Kenneth's Estate. (Prob. Code, § 11802.) Or in the alternative, provides for distribution to the personal representative of Kenneth's Estate.
2. **Mail** notice of this Petition to the Franchise Tax Board, using the mandatory Judicial Council Form "Notice of Hearing – Decedent's Estate or Trust," pursuant to their Request for Special Notice filed on 10/23/24. (Judicial Council Forms, form DE-120.)
3. **Mail** notice of the Amendment to all parties, including the Franchise Tax Board, using the mandatory Judicial Council Form "Notice of Hearing – Decedent's Estate or Trust." (Judicial Council Forms, form DE-120.)
4. **File** a copy of the DE-120 that was mailed, with the Proof of Service completed on page 2 showing that the parties received at least fifteen days' notice of the Petition and the Amendment. (Prob. C. § 12201(b).)
5. **File** the mandatory Judicial Council Form "Allowance or Rejection of Creditor's Claim" in response to the Franchise Tax Board's Creditor's Claim filed on 10/23/24. (Judicial Council Forms, form DE-174.)

PR0000228 IN THE MATTER OF CHAPMAN MARITAL EXEMPT TRUST & CHAPMAN MARITAL NON-EXEMPT TRUST

Petition for Surcharge of Trustee and Objecting to Trustee's Accounting, filed by Bruce Chapman, Susan Wassermann, and Sheila Chapman on 8/12/26.

Ruling. This matter is **continued to December 10, 2026, at 9:00 a.m.**, pursuant to the stipulated Order issued on 8/10/26.

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PR000357 IN THE MATTER OF JOHN MICHAEL McSPADDEN

Third Status Report of Administration and Petition for Continuation of Administration of Estate, filed by Lydia Ann Meyers on 8/6/26.

Ruling. Absent objections, the Report of Status of Administration is **accepted and approved**. Personal Representative is **ordered to comply** with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report of Status of Administration shall be **filed by May 20, 2027**, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report shall be **set on June 10, 2027, at 10:00 a.m.**
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on June 10, 2027, at 9:00 a.m.

**PR000414 IN THE MATTER OF THE CHRISTOPHER LOUIS VACCARO, JR. REVOCABLE
DISCRETIONARY SPECIAL NEEDS TRUST OF 2014**

Petition for Return of Assets Pursuant to Probate Code Section 850, filed by Christopher Vaccaro, Jr. on 10/15/25.

Ruling. The parties are **ordered to appear**.

PR000431 IN THE MATTER OF LYNELL WHEELOCK

Verified Fifth Report of Status of Administration, filed by Forbe L. Myers on 7/22/26.

Ruling. Absent objections, the Report of Status of Administration is **accepted and approved**. Personal Representative is **ordered to comply** with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report of Status of Administration shall be **filed by May 20, 2027**, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report shall be **set on June 10, 2027, at 10:00 a.m.**
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on June 10, 2027, at 9:00 a.m.

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PR0000526 IN THE MATTER OF SARA ANN BIANCALANA

Petition for Letters of Administration for Successor Administrator, filed by Michael Louis Biancalana on 7/9/26.

Ruling. Absent objections, this Petition will be **granted without hearing**.

PR0000908 IN THE MATTER OF DAMIANO TAMBURRINO

Status Report of Administration, filed by Felicia Flores on 8/12/26.

Ruling. Absent objections, the Report of Status of Administration is **accepted and approved**. Personal Representative is **ordered to comply** with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report of Status of Administration shall be **filed by November 12, 2026**, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report shall be **set on December 3, 2026**, at 10:00 a.m.
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on December 3, 2026, at 9:00 a.m.

PR0001010 IN THE MATTER OF ELEANOR C. CRISWELL

Successor Executor's Report on Status of Administration, filed by Ronald C. Stone on 7/8/26.

Ruling. This matter is **continued to September 24, 2026, at 9:00 a.m.** The Proof of Service filed July 8, 2026, states that the hearing date was July 30, 2026; however, the assigned hearing date was August 27, 2026.

Petitioner is ordered to:

1. **File** Proof of Service showing that all interested parties received at least fifteen days' notice of the 9/24/26 hearing on the mandatory form "Notice of Hearing – Decedent's Estate or Trust." (Judicial Council Forms, form DE-120.)
2. **Submit** a proposed Order to the Court. (Super. Ct. Marin County, Local Rules, rule 6.2(C), Submission of Proposed Orders.)
3. The documents must be filed/submitted at least **five court days prior to hearing**. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)

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1. Motion to Compel the Deposition of Samir Jizrawi and Production of Documents, and for Monetary Sanctions, filed by Peter Jizrawi on 7/6/26.
2. Motion to Compel the Deposition of Souhail Jizrawi and Production of Documents, and for Monetary Sanctions, filed by Peter Jizrawi on 7/6/26.
3. Motion to Disqualify Counsel, filed by Samir Jizrawi on 7/24/26.
4. Motion to Compel the Deposition of Souhail and Souhail Jizrawi and Production of Documents, and for Monetary Sanctions, filed by Peter Jizrawi on 8/11/26.

Ruling. The **Motion to Disqualify Counsel** filed by Samir Jizrawi on 7/24/26 and **Joinder** filed by Souhail Jizrawi on 7/6/26 are **denied** as set forth below. **All parties are ordered to appear** to address the remaining discovery motions.

Introduction

The Court has considered the motion of Respondent Samir Jizrawi to disqualify Petitioner Peter Jizrawi's counsel, and the joinder filed by Respondent Souhail Jizrawi. In the motion, Samir [\[1\]](#) seeks to disqualify Christopher R. Ulrich of Murphy, Pearson, Bradley & Feeney, P.C., and co-counsel Nancy C. Field of Nancy C. Field Law, Inc. The Court has reviewed the parties' submissions, including declarations, deposition excerpts, exhibits, and the authorities cited. For the reasons set forth below, the motion and joinder are denied.

Background

This probate matter concerns Peter's efforts to administer the estate plan of the decedent, Julie Jizrawi, against objections raised by her sons, Samir and Souhail. The disqualification motion arises from witness-preparation meetings in prior litigation in which Peter was a party and Mr. Ulrich served as Peter's counsel. Samir contends those meetings created an attorney-client relationship and imparted confidential information later used against him in this action. Peter opposes, arguing there was no attorney-client relationship with Samir, no identified material confidence belonging to Samir, no substantial relationship between the subjects of the prior and current matters, and an unreasonable delay in bringing the motion. Souhail's joinder asserts independent prejudice and an advocate-witness conflict.

Legal Standard

Disqualification is a drastic remedy that should be granted sparingly, with the moving party bearing the burden to establish the factual and legal bases for removal of opposing counsel. *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.*, (1999) 20 Cal.4th 1135, 1145. Where successive representation is alleged, the threshold inquiry is whether an attorney-

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client relationship existed in the prior matter. Only if that predicate is met does the substantial relationship analysis under Rule 1.9 of the Rules of Professional Conduct (Rule 1.9) apply. *SpeedDee Oil, supra*, 20 Cal.4th at 1147; *Jessen v. Hartford Casualty Ins. Co.*(2003) 111 Cal.App.4th 698, 706-707.

Analysis

A. No Attorney-Client Relationship Was Formed Between Samir and Petitioner’s Counsel

Samir bears the burden to show that an attorney-client relationship arose in the prior matter based on the totality of the communications and reasonable expectations. *SpeedDee Oil, supra*, 20 Cal.4th at 1147-1148. The record, as a whole, does not support that conclusion.

Samir’s contemporaneous account of the meetings given during his February 19, 2024 deposition describes an interview initiated by counsel and an investigator “to ask me if I know anything” about the case, including whether he had seen or heard anything relevant, which is consistent with fact-gathering for Peter’s defense rather than legal consultation for Samir’s own rights or interests. In that testimony, Samir stated he understood the investigator to have been engaged by “the lawyer,” and he twice characterized the exchange as answering what he knew, not seeking or receiving advice for himself. In the same session, when first asked whether he had spoken with “these lawyers” before testifying and whether he was in communication with anyone about the case, Samir answered no multiple times. These statements are inconsistent with a reasonable belief that counsel represented him.

Samir identifies no legal advice provided to him regarding his own rights, liabilities, or interests. The investigator’s June 23, 2023 notes reflect counsel pressing Samir for candor and “significant evidence,” accusing him of “holding back,” and emphasizing “we needed the truth,” but they record no advice to Samir about his personal legal position. Telling a witness to be truthful and complete does not, without more, constitute legal advice to that witness about the witness’s rights or exposure under *SpeedDee Oil’s* standard.

Other facts support the conclusion that no attorney-client relationship existed between Samir and Mr. Ulrich. There is no engagement letter, fee agreement, bill, or conflict waiver between Samir and counsel or counsel’s firm. Mr. Ulrich identified himself to Samir in writing and voicemail as “your father’s attorney” and “Peter’s attorney.” On Peter’s behalf, Mr. Ulrich cross examined Souhail at Souhail’s January 22 2024 deposition and prepared Samir as a witness favorable to Peter at Samir’s February 19, 2024 deposition. Samir was not represented by Mr. Ulrich at that proceeding and he never sought or received legal advice from Mr. Ulrich. On this record, Samir has not met his burden to establish that an attorney-client relationship formed.

B. Even Assuming a Relationship, Samir Has Not Shown Material Confidential Information Belonging to Him Was Obtained or Used

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Rule 1.9 protects a former client's confidential information material to the later matter. Samir has not identified a specific material confidence belonging to him communicated in the prior meetings. The deposition passages relied upon reference "your brother's account of what happened," and Samir answered "Vaguely" when asked about prior discussions on that point. On this showing, the Court cannot presume into existence confidential information of Samir that is material to the present probate claims.

C. The Prior Matter Is Not Shown To Be Substantially Related To The Issues For Trial Here

The substantial relationship doctrine is not reached unless the movant first establishes a former attorney-client relationship with the challenged lawyer. (*SpeedDee Oil, supra*, 20 Cal.4th 1135, 1147–1148; *Jessen, supra*, 111 Cal.App.4th 698, 706–707.) Here, the record cited by the parties reflects witness fact-gathering for Peter's defense rather than legal advice or services rendered to Samir. Samir testified in the prior matter that counsel and an investigator "came to ask me if I know anything," asked what he had "seen" or "heard," and he "would imagine the lawyer" retained the investigator, while earlier denying he had spoken with "these lawyers" before testifying. The contemporaneous investigator notes likewise reflect pressure for candor and "significant evidence," not legal counseling of Samir about his own rights. Counsel also identified himself to Samir as "your father's attorney" and "Peter's attorney," and there is no engagement letter, fee agreement, billing, or conflict waiver with Samir. On that record, the threshold predicate for applying Rule 1.9 and the substantial relationship presumption is not shown. *SpeedDee Oil, supra*, 20 Cal.4th at 1147–1148; *Jessen, supra*, 111 Cal.App.4th at 706–707.

Even assuming *arguendo* a prior relationship, Samir must show the former and current matters are "substantially related" by demonstrating that confidential information material to the present dispute would normally have been imparted in the former matter; generalized overlap in parties or subject matter is insufficient. *H.F. Ahmanson & Co. v. Salomon Brothers, Inc.* (1991) 229 Cal.App.3d 1445, 1452–1455; *Jessen, supra*, 111 Cal.App.4th at 709–713; *Faughn v. Perez* (2006) 145 Cal.App.4th 592, 603.

The prior Giragossian matter involved a personal family dispute in which Samir was contacted as a fact witness, while this probate proceeding turns on the validity of Julie Jizrawi's estate instruments (2011–2018), the effect of a 2022 revocation (Fam. Code, § 761), and Samir's promissory estoppel claim to 108 Bellam. Samir does not identify any Samir-owned confidential information from the witness interviews that is material to those probate issues; the only concrete example cited is counsel's deposition reference to having discussed "your brother's account of what happened," to which Samir answered "Vaguely," with no privilege objection asserted at the time. That showing does not satisfy the substantial relationship test, and the presumption of shared confidences cannot be used to supply missing proof of material confidences. *Flatt v. Superior Court* (1994) 9 Cal.4th 275, 283; *Jessen, supra*, 111 Cal.App.4th at 706–713.

D. Samir's Delay Weighs Against Disqualification

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Courts may deny disqualification where there is unreasonable delay coupled with prejudice. *River West, Inc. v. Nickel* (1987) 188 Cal.App.3d 1297, 1309-1311; *Liberty National Enterprises, L.P. v. Chicago Title Ins. Co.* (2011) 194 Cal.App.4th 839, 845-848. Samir acknowledges he “initially believed that Mr. Ulrich’s representation of my father in this action was of a minor concern,” reflecting awareness and an election not to object until later. Trial is set for October 5, 2026, and the requested remedy would deprive Petitioner of long-standing counsel weeks before trial. On balance, the timing and resulting prejudice further support denial.

E. Souhail Lacks Standing And Fails To Establish An Advocate-Witness Conflict

A non-client generally lacks standing to seek disqualification absent a duty of confidentiality owed to the movant. *Great Lakes Construction, Inc. v. Burman* (2010) 186 Cal.App.4th 1347, 1356. Souhail does not assert an attorney-client relationship or confidential disclosures to counsel. He was adverse to Peter in prior litigation and remains adverse here. The exception for duties owed to a non-client does not apply. The exception applies when counsel owes a non-client a duty of confidentiality (*Dino v. Pelayo* (2006) 145 Cal.App.4th 347, 352.) Souhail makes neither claims that he was a client of Mr. Ulrich’s nor that he ever disclosed to counsel anything which would invoke this exception.

“A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless: (1) the lawyer's testimony relates to an uncontested issue or matter; (2) the lawyer's testimony relates to the nature and value of legal services rendered in the case; or [¶] (3) the lawyer has obtained informed written consent from the client.” (Rule of Prof. Conduct, Rule 3.7(a).) Rule 3.7 of the Rules of Professional Conduct restricts an advocate who is “likely to be a witness” on a contested, material issue. *Doe v. Yim* (2020) 55 Cal.App.5th 573, 582. The issues for trial concern the validity of Julie Jizrawi’s testamentary instruments, the 2022 revocation, and Samir’s promissory estoppel claim, not collateral conversations about public lawsuits involving Souhail. Statements made by counsel during a deposition are not evidence, and the transcript is not admissible to prove counsel’s assertions. On this record, Souhail has not shown that counsel’s testimony is necessary or that any advocate-witness concern would prejudice him.

Conclusion and Order

Samir has not established the existence of an attorney-client relationship with Petitioner’s counsel in the prior matter, has not identified any material confidential information of his that was obtained or used in the present proceeding, and has not shown a substantial relationship between the subjects of the prior meetings and the issues to be tried in this case. The delay in raising the objection and the prejudice that would result on the eve of trial further counsel against the extraordinary remedy of disqualification. Souhail lacks standing to seek disqualification on the facts presented and has not demonstrated that Rule 3.7 is implicated.

Accordingly, the motion to disqualify counsel and the joinder are DENIED.

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[\[u\]](#) The Court uses the parties' first names for clarity and means no disrespect in doing so.

PR0001112 IN THE MATTER OF JOYCE M. ROWLEY

Second Report of Executor on Status of Administration, filed by Carol Lynch on 8/6/26.

Ruling. Absent objections, the Report of Status of Administration is **accepted and approved**. Personal Representative is **ordered to comply** with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report of Status of Administration shall be **filed by November 12, 2026**, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report shall be **set on December 3, 2026, at 10:00 a.m.**
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on December 3, 2026, at 9:00 a.m.

PR0001465 IN THE MATTER OF DONALD E. JENSEN AND BILLIE B. JENSEN REVOCABLE LIVING TRUST DATED JUNE 20, 2011

Petition for Order Confirming Trust Assets and for Instructions, filed by Mark Jensen and Andrea Guarino-Slemmons on 9/12/25.

Ruling. This matter is **continued to October 15, 2026, at 9:00 a.m.** Petitioner is **ordered to comply** with the 6/5/26 Court Order requiring that notice be served using the mandatory form "Notice of Hearing on Petition to Determine Claim to Property." (Judicial Council Forms, form DE-115.) The Court notes that while such notice is to be served in the manner set forth by Code of Civil Procedure section 413.10, et seq., no summons is required. (Prob. Code, § 17203(b).)

PR0001515 IN THE MATTER OF THE APARTON FAMILY TRUST U/D/T 9/4/1991 AS RESTATED SEPTEMBER 17, 2024

Order to Show Cause re Dismissal of Petition to Invalidate Trust Restatement, Due to Notice of Settlement of Entire Case filed on 2/5/26.

Ruling. This matter is **ordered off calendar** pursuant to the Dismissal entered on 7/7/26.

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PR0001548 IN THE MATTER OF FRANCES H. VALDEZ

Petition for Final Distribution on Waiver of Accounting; for Allowance of Statutory Attorney's Fees; and for Final Discharge, filed by Elvira V. Broida-Shirk on 7/2/26.

Ruling. Absent objections, this Petition will be **granted without hearing**. Petitioner is **ordered to submit** a proposed Order to the Court, no later than five court days from the date of this hearing.

PR0001681 IN THE MATTER OF JEAN VIA DE LA VISTA TRUST

Petition to Remove Co-Trustee Michael Barnett, filed by Charles Barnett on 5/1/26.

Ruling. The parties are **ordered to appear**.

PR0001876 IN THE MATTER OF GEORGE T. OSTERKAMP TRUST U/A/D AUGUST 28, 2025

Petition for Order Authorizing and Directing Transfer of Property to Trustee of Trust, filed by Florence Higa on 6/30/26.

Ruling. The parties are **ordered to appear** to discuss proper venue of this matter pursuant to Probate Code sections 17005 and 17002.

PR0001877 IN THE MATTER OF GEORGE T. OSTERKAMP

Petition for Probate of Will and for Letters Testamentary, filed by Florence Higa on 7/2/26.

Ruling. This matter is continued to **September 24, 2026, at 9:00 a.m.** Petitioner is **ordered to:**

1. **File** a Supplement to Petition, signed and verified by Petitioner, that provides more information with regard to the relationships of Decedent's heirs. Ex: John Doe, son of Decedent's predeceased sister, Jane Doe. (Super. Ct. Marin County, Local Rules, rule 6.10(C), Listing Devisees and Heirs.)
2. **File** Proof of Service showing that the Israel Consulate received at least fifteen days' notice of the Petition on the mandatory form "Notice of Petition to Administer Estate." (Judicial Council Forms, form DE-121; Prob. Code, § 8113.)
3. The documents must be filed/submitted at least **five court days prior to hearing**. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)

PR0001888 IN THE MATTER OF THOMAS G. NEELEY

Spousal Property Petition, filed by Kristina M. Lanese on 7/8/26.

Ruling. Absent objections, this Petition will be **granted without hearing**.

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Petition for Probate of Will and for Letters Testamentary, filed by Susan Martinelli on 7/23/26.

Ruling. Absent objections, this Petition will be **granted without hearing**. Petitioner is **ordered to comply** with the following future dates:

1. **Final Inventory and Appraisal.**
 - a. A status hearing for the filing of the Final Inventory and Appraisal shall be **set on January 7, 2027, at 10:00 a.m.** (Prob. Code, § 8800.)
 - b. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)
2. **Status on Closing Estate.**
 - a. **Either:** (1) a Petition for Final Distribution; **or** (2) a Report on Status of Administration **shall be filed by September 2, 2027**, as required by Probate Code sections 12200 and 12201.
 - b. A status hearing re filing the Petition or Report shall be **set on September 23, 2027**, at 10:00 a.m.
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on October 29, 2026, at 9:00 a.m.

Petition for Letters of Administration, filed by Sean McEvoy on 7/28/26.

Ruling. Absent objections, this Petition will be **granted without hearing**. Petitioner is **ordered to comply** with the following future dates:

1. **Final Inventory and Appraisal.**
 - a. A status hearing for the filing of the Final Inventory and Appraisal shall be **set on January 7, 2027, at 10:00 a.m.** (Prob. Code, § 8800.)
 - b. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)
2. **Status on Closing Estate.**
 - c. **Either:** (1) a Petition for Final Distribution; **or** (2) a Report on Status of Administration **shall be filed by September 2, 2027**, as required by Probate Code sections 12200 and 12201.
 - d. A status hearing re filing the Petition or Report shall be **set on September 23, 2027**, at 10:00 a.m.
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on October 29, 2026, at 9:00 a.m.

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PRO001916 IN THE MATTER OF QUINN CHRISTOPHER McINTOSH

Petition for Letters of Administration, filed by Serena Isis McIntosh on 7/28/26.

Ruling. This matter is **continued to September 17, 2026, at 9:00 a.m.** Attorney failed to sign the Petition and is **ordered to cure** this deficiency. (Code Civ. Proc., § 128.7.)

PRO024356 JAKE LACUES, A MINOR, IN THE MATTER OF

Eleventh and Final Account and Report of Immediate Past Trustee of Special Needs Trust, Petition for Its Approval, to Discharge Bond of Immediate Past Trustee and Exonerate Surety, for Fees to Petitioner and to Attorney, and for Authorization re Payment of Fees on Account for Current Trustee, filed by James T. Ryan on 7/1/26.

Ruling. Absent objections, this Petition will be **granted without hearing.**

PRO1403390 IN RE THE MARY BENNETT McQUINN SURVIVOR'S TRUST

Declaration in Support of Petition for Order Compelling Trust Disclosure and Accounting, filed by Michael McQuinn on 7/1/26.

Ruling. In light of the objection filed by Douglas B. McQuinn on 8/18/26 (the objection), this matter is **continued to October 8, 2026, at 9:00 a.m.** Petitioner is ordered to file and serve on all interested parties, by no later than September 8, 2026, an actual petition pursuant to Probate Code, Section 17000, et seq., which shall address the objections filed by Douglas. The parties are ordered to meet and confer to discuss informal resolution of this matter. Petitioner is ordered to file a proposed order in this matter by September 8, 2026 as well.

PRO1702992 IN RE THE DONALD PERRY RESIDUAL TRUST

1. Verified Petition for Approval of the Fourth and Final Account and Final Distribution of the Donald Perry Residual Trust, filed by Joan E. Perry on 3/2/26.
2. Notice of Death of Beneficiary, Notice of Withdrawal of Request for Compensation, and Motion to Continue Hearing on Supplement to the Verified Petition for Approval of the Fourth and Final Account and Final Distribution of the Donald Perry Residual Trust, filed by Joan E. Perry on 8/18/26.

Ruling. Petitioner's unopposed motion to continue is **granted**. This matter is now **continued to November 12, 2026 at 9:00 a.m.** in Department C. Petitioner is **ordered to** provide statutory notice of this date to all interested parties.

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PRO2201880 IN RE THE AUDREY CALDARA SPECIAL NEEDS TRUST

Seventh Account and Report of Trustee and Petition for Its Settlement, and for Allowance of Trustee's Fees and County Counsel's Fees, filed by Marin County Public Guardian on 7/16/26.

Ruling. Absent objections, the Seventh Account and Report of Trustee will be **granted without hearing. Trustee is ordered to comply with the following future dates:**

1. Trustee's Second Account and Report for the period 5/9/26 – 5/8/28 shall be filed by **July 20, 2028.**
2. A status hearing re filing the Second Account and Report shall be set on **August 31, 2028, at 10:00 a.m.**
 - a. If the Second Account and Report is not timely filed, an appearance will be required.
 - b. If the Second Account and Report is timely filed, the hearing will be set on **August 31, 2028, at 9:00 a.m.**

PRO2201977 CHARLES MALCOLM STEWART, ESTATE OF

Seventh Status Report of Administration and Petition for Continuation of Administration of Estate, filed by Douglas Kohler Stewart on 8/6/26.

Ruling. Absent objections, the Report of Status of Administration is **accepted and approved.** Personal Representative is **ordered to comply** with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report of Status of Administration shall be **filed by November 25, 2026**, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report shall be **set on December 17, 2026, at 10:00 a.m.**
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on December 17, 2026, at 9:00 a.m.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at [\(415\) 444-7260](tel:4154447260).

Judge James T. Chou
Department C
10:00 Calendar

PR0001712 IN THE MATTER OF JOHN HENRY ROBERTSON

Status Conference - Filing of Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001718 IN THE MATTER OF GREGORY EARL GLENN

Status Conference - Filing of Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

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Judge James T. Chou
Department C
1:30 Calendar

PR0000722 IN THE MATTER OF SHEILA MacDONALD

Conservator's First Account and Report for Period 11/14/2024 Through 11/30/2025 and Petition for Its Settlement and Approval, filed by Cameron Bamberger on 7/23/26.

Ruling. This matter is **continued to September 17, 2026, at 1:30 p.m.** Petitioner is **ordered to:**

1. **Mail** notice to Sheila MacDonald using the mandatory Judicial Council Form "Notice of Hearing – Guardianship or Conservatorship". (Judicial Council Forms, form GC-020.)
2. File a copy of the GC-020 that was mailed, with the Proof of Service completed on page 2
3. The Proof of Service must be filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)

PR0000885 IN THE MATTER OF JOHN ALDERETE

Status Conference – Filing First Account

Ruling. The parties are **ordered to appear.**

PR0001447 IN THE MATTER OF MICHAL ROONEY

Status Conference – Resubmission of Confidential Conservatorship Care Plan.

Ruling. This matter is ordered **off calendar**; the Confidential Conservatorship Care Plan has been filed.

PRO2203683 ERIC EWING DAVIS, LIMITED CONSERVATORSHIP OF THE PERSON AND ESTATE

Status Conference – Filing Second Account

Ruling. The parties are **ordered to appear.**

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